Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

THIRD REGULAR SESSION

PARLIAMENT RESOLUTION NO. 512

RESOLUTION REQUESTING THE SUPREME COURT OF THE PHILIPPINES AND LEGAL EDUCATION BOARD TO CONSIDER INCLUDING IN THE CLINICAL LEGAL EDUCATION PROGRAM A PROVISION REQUIRING LAW STUDENTS TO PROVIDE FREE LEGAL ASSISTANCE TO BARANGAY OFFICIALS IMPLEMENTING THE "KATARUNGANG PAMBARANGAY LAW"

WHEREAS, Memorandum Order No. 23, Series of 2020, which was issued by the Legal Education Board, mandates the integration of Clinical Legal Education Program (CLEP) into the basic law curriculum in order to prepare law students for advocacy, counseling, problem-solving, and decision-making as well as to develop socially committed lawyers with integrity and competence;

WHEREAS, Section 2(a) of Rule 138–A, of the Rules of Court provides that *"Clinical Legal Education Program is an experiential, interactive and reflective credit-earning teaching course with the objectives of providing law students with practical knowledge, skills, and values necessary for the application of the law, delivery of legal services and promotion of social justice and public interest, especially to the marginalized, while inculcating in the students the values of ethical lawyering and public service. It consists of learning activities covered by this Rule undertaken in either a 1) law clinic or an 2) externship, which shall incorporate the teaching of legal theory and doctrines, practical skills, as well as legal ethics;"*

WHEREAS, the CLEP provides students with the necessary skills for their eventual practice of law and socially conscious values for their role in the community, supplements knowledge accumulated through three (3) years of teaching-learning experiences in the College, and offers an actual and practical understanding of the practice of law by being directly and personally involved in addressing legal problems and situations;

WHEREAS, the indiscriminate filing of cases in court, even for petty offenses, heavily contributes and unjustifiably to the congestion of court dockets, thereby causing a deterioration in the quality of justice in the Philippine justice system;

WHEREAS, the Barangay Justice System, which was first established by the Presidential Decree No. 1508 in 1978 and Batas Pambansa Blg. 337, was later improved by Republic Act No. 7160, otherwise known as the *"Local Government Code of 1991"*, which aimed to speed up the administration of justice, reduce the number of imperceptive filings of cases, and unclog court dockets;

WHEREAS, the Barangay Justice System, as an alternative community-based mechanism for conflict resolutions, provides a friendly, inexpensive, and speedy forum for setting disputes, where the parties can freely explore options for amicably resolving their issues without resorting to the regular courts, achieving improved quality of justice through the time-honored traditions and practices of communities in resolving disputes between their members;

WHEREAS, the implementation of the Barangay Justice System is undertaken by the barangay chairman and the Lupon members, who are selected pursuant to the Local Government Code of 1991 on the basis of their integrity, impartiality, independence, and the traditional recognition of elders who do not necessarily possess the legal knowledge and expertise to address the questions of law confronting the Barangay Justice System;

WHEREAS, unlike legal practitioners, including law students at existing law schools and other primary law enforcement agencies, the Lupon members of the Barangay Justice System are not as well-equipped or well-trained in legal matters that may confront the barangay justice;

WHEREAS, the Bangsamoro Autonomous Region in Muslim Mindanao (BARMM) has a long history of armed struggle and *"rido"* conflicts, which have hindered the peace and development of the region;

WHEREAS, *"rido"* conflicts, which are recurring hostilities between families and kinship groups that are characterized by a series of retaliatory acts of violence carried out to avenge a perceived affront or injustice, have plagued regional peace and development, which, if not addressed at the earliest possible opportunity, may result in transgenerational discord;

WHEREAS, provisions of existing laws and legal orders, including the "*Katarungang Pambarangay Law,"* if well and fully implemented, will help achieve justice, peace, and development in every community or barangay in the region;

WHEREAS, through years of education and training in law schools and other legal forums, law students are equipped with legal knowledge and concepts, which are essential and instrumental in helping administer justice at the community and various barangay levels through the provision of free legal services to aid the Barangay Justice System;

WHEREAS, to help capacitate the Barangay Justice System implementors with legal questions on matters and disputes brought before them by local disputing parties, thereby increasing their efficiency and effectiveness in the administration of justice at the barangay or community level, it is deemed desirable to formally organize and institutionalize a system requiring the law students to render on-site legal assistance to the Barangay Justice System;

WHEREAS, the inclusion of rendering on-site legal services to the Barangay Justice System in the CLEP would significantly improve the efficiency and effectiveness of the Barangay Justice System, a system established to resolve disputes across barangay levels in the Region:

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority Parliament, To request the Supreme Court of the Philippines and Legal Education Board to consider including in the Clinical Legal Education Program a provision requiring law students to provide free legal assistance to barangay officials implementing the *"Katarungang Pambarangay Law."*

RESOLVED, FURTHER, To forward a copy of this Resolution to the Supreme Court of the Philippines and the Legal Education Board for information and appropriate consideration.

ADOPTED, *Rajab* 23, 1446/January 23, 2025.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. PANGALIAN M. BALINDONG
Speaker

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